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Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
CS-I(CS-I (S))

(Dated 06 October, 2022)

OFFICE MEMORANDUM

Grant of Non-functional Scale to Section Officers of CSS

Department of Personnel & Training has issued instructions from time to time regarding Grant of Non-functional Scale to Section Officers of Central Secretariat Service (CSS). The essence of these instructions has been summarized in the following paras for guidance and better understanding.

1. **Introduction of Non Functional Scale of Rs. 8000-275-13500- (pre-revised) in Section Officers' Grade of Central Secretariat Service (CSS):**

On the basis of the recommendations of the Committee on Cadre Restructuring of Central Secretariat Service (CSS) set up in February, 2001 and acceptance of the same by the Government, the Section Officers of CSS were granted Non-Functional Scale in accordance with the following parameters:

- i) The Non Functional Scale of Rs.8000-275-13500 (pre-revised as per V CPC) is admissible to the Section Officers of CSS on completion of 4 years of approved service in the grade, subject to their vigilance clearance.
- ii) Though the notional pay fixation of the eligible officers will be done w.e.f. 01.01.1996, actual benefits will accrue to them w.e.f. 03.10.2003;
- iii) On account of such pay fixation, the officers would be entitled to draw arrears of pay w.e.f. 03.10.2003.
- iv) Section Officers of CSS, who are granted this Non Functional Scale of Rs.8000-275-13500 will continue to remain in Group 'B' (Gazetted) and their eligibility for promotion to Grade-I (Under Secretary) of CSS in the pay scale of Rs.10000-15200 will be reckoned on the basis of total period of service spent in both the pay scales, viz. Rs.6500-10500 and Rs.8000-13500, counted together.
- v) Such officers who are placed in the above Non Functional Scale will be entitled to the benefit of pay fixation under F.R.22(I)(a)(2).

[DoPT's [OM No. 21/36/03-CS.I dated 13.11.2003](#)]

[DoPT's [OM No. 5/4/2005-CS.I dated 25.01.2006](#)]

2. **Applicability to Section Officers of CSS who have already completed 4 years of approved service in the grade as on 01.01.1996 or prior to this date:**

The Section Officers of CSS who had completed approved service of 4 years or more in the grade on 01.01.1996 were eligible for being placed directly in the scale of Rs.8000-13500 in accordance with CCS (RP) Rules, 1997 notionally w.e.f. 01.01.1996. However, the actual financial benefits were to be paid only w.e.f 03.10.2003.

[DoPT's [OM No. 5/4/2005-CS.I dated 30.03.2006](#)]

3. **Fixation of pension of Officers retired during the period 01.01.1996 to 02.10.2003:**

The matter was considered in consultation with the Department of Pension & Pensioners' Welfare and Ministry of Finance (Department of Expenditure) and it was decided that:

i) The pension of the pensioners (Section Officers/Private Secretaries (Group 'A' & 'B' merged)/Under Secretaries/Principal Private Secretaries of CSS/CSSS) who had retired from CSS/CSSS during 01.01.1996 to 02.10.2003 and entitled for NFS would be fixed as per the upgraded scale notionally extended with effect from 01.01.1996. However, no arrears shall be paid for the period from 01.01.1996 to 02.10.2003 and the pension with reference to the higher revised pay scale shall actually be paid only with effect from 03.10.2003.

ii) The average emoluments notionally drawn by a pensioner consequent on the above revision of pay scales of Section Officers/Private Secretaries (Group 'A' & 'B' merged)/Under Secretaries/Principal Private Secretaries of CSS/CSSS will also be taken into account for the purpose of computation of pension subject, of course, to the condition that no arrears shall be paid for the period from 01.01.1996 to 02.10.2003 and the pension with reference to the higher average emoluments. shall actually be paid only with effect from 03.10.2003.

iii) The benefits of gratuity, commutation of pension and leave encashment becoming payable during 01.01.1996 to 2.10.2003 will be based on the actual pay/pension drawn by the retired employee during that period.

[DoPT's [OM No. 5/4/2005-CS.I dated 14.05.2009](#)]

4. **Provisions in Central Secretariat Service (CSS) Rules, 2009.**

With the notification of Central Civil Service (Revised Pay) Rules 2008 and Central Secretariat Service (CSS) Rules 2009, the grant of NFS to Section Officers of CSS is now governed by Rule 17 of CSS Rules 2009 read with Part-B, Section II of CCS (Revised Pay) Rules 2008.

5. **Pay fixation on grant of non-functional scale to Section Officers of CSS subsequent to implementation of CCS (Revised Pay) Rules, 2008:**

Earlier, the pay fixation upon grant of NFS to Section Officers of CSS was done under FR 22(I)(a)(2). After implementation of CCS (Revised Pay) Rules 2008, the pay of the Section Officers on grant of NFS shall be fixed w.e.f. 01.01.2006 under Rule 13 of CCS (Revised Pay) Rules, 2008 i.e. they should be granted one increment @ 3% of their basic pay plus the difference in grade pay (Rs.5400-Rs.4800=Rs.600) .

[DoPT's [OM No. 5/4/2005-CS.I dated 19.11.2009](#)]

6. **Manner of fixation of pay upon grant of Non-Functional Scale to Section Officers of CSS:**

Regular Section Officers who have completed 4 years approved service in the grade are granted NFS and their pay shall be fixed notionally w.e.f. the 1st July of the year in which they have completed the prescribed 4 years approved service with actual financial benefits w.e.f. the date of assumption of duty in the post of Section Officer, whether on ad-hoc or regular basis subject to Vigilance Clearance.

[DoPT's [OM No. 5/4/2005-CS.I\(S\) dated 01.04.2014](#)]

[DoPT's [OM No. 5/4/2005-CS.I\(S\) dated 21.04.2014](#)]

[DoPT's [OM No. 5/4/2005-CS.I\(S\) dated 14.09.2022](#)]

7. **Fixation of pay upon grant of NFS to Section Officers of CSS under CCS (Revised Pay) Rules 2016**

With the notification of CCS (Revised Pay) Rules 2016, the pay upon grant of NFS to Section Officers of CSS is being fixed currently under Rule 13 of CCS (Revised Pay) Rules 2016.

Note: In case any reference to the relevant OM is required, the same may be accessed by clicking on the hyperlink or from the DOPT's website. **A list of the OMs mentioned in this document is as under:**

1. DoPT's [OM No. 21/36/03-CS.I dated 13.11.2003](#)
2. DoPT's [OM No. 5/4/2005-CS.I dated 25.01.2006](#)
3. DoPT's [OM No. 5/4/2005-CS.I dated 30.03.2006](#)
4. DoPT's [OM No. 5/4/2005-CS.I dated 14.05.2009](#)
5. DoPT's [OM No. 5/4/2005-CS.I dated 19.11.2009](#)
6. DoPT's [OM No. 5/4/2005-CS.I\(S\) dated 01.04.2014](#)
7. DoPT's [OM No. 5/4/2005-CS.I\(S\) dated 21.04.2014](#)
8. DoPT's [OM No. 5/4/2005-CS.I\(S\) dated 14.09.2022](#)
